

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, address, telephone number, and attorney State Bar number): ATTORNEY FOR (Name): SUPERIOR COURT OF CALIFORNIA, COUNTY OF ALAMEDA COURT ADDRESS PLAINTIFF DEFENDANT	Reserved for Clerk's File Stamp CASE NUMBER
DEFICIENCY MEMORANDUM FOR DEFAULT JUDGMENT—AUTO SALES AND LEASES	

1. CONTRACT (Submit original contract)

- a. Type of contract: ☐ purchase—add-on interest ☐ purchase—simple interest ☐ lease—open-end
 b. Date of contract:
 c. Original seller or lessor:
 d. Assignee:

2. REPOSSESSION (Submit copies of notices sent)

- a. Date of default:
 b. Date of repossession:
 c. Date redemption notice mailed:

3. RESALE (Submit proof of sale)

- a. Date of resale:
 b. Resale price:
 c. Type of sale: ☐ public ☐ private
 d. Name of purchase at resale:
 e. Condition of merchandise (submit proof to support sale conducted in commercially reasonable manner):
☐ Good ☐ Fair
 f. Blue Book value: High: \$ _____ Low: \$ _____

4. DEFICIENCY CALCULATIONS (NOTE: Line a plus line d minus line e must equal line f)

Contract Balance

- | | | |
|--|-----|--|
| a. Total contract amount (total of payments): | \$ | |
| b. Amount of insurance add-on (submit copy of letter sent): | \$ | |
| c. Other add-on items (explain and submit proof): | \$ | |
| d. Subtotal (add-on items): | \$ | |
| e. Less: Amount paid before default: | (\$ | |
| f. Balance due on date of default (contract amount <i>plus</i> add-on items <i>minus</i> amount paid): | \$ | |

Rebates

- | | | |
|--|-----|--|
| g. Amount rebated, unused finance charges or unearned lease charges: | \$ | |
| h. Amount rebated, unused insurance: | \$ | |
| i. Other rebates (explain): | \$ | |
| j. Less: Subtotal (rebates): | (\$ | |
| k. Balance due after rebates: | \$ | |

Expenses (Submit proof)

- l. Repossession expenses:
- m. Bank collection charges:
- n. Reconditioning expenses:
- o. Storage expenses:
- p. Salesperson commissions:
- q. Title expenses:
- r. Late charges:
- s. Other expenses (*specify*):

\$ _____
\$ _____
\$ _____
\$ _____
\$ _____
\$ _____
\$ _____

t. Subtotal (expenses):

\$ _____

Credits

- u. Amount received resale:
- v. Amounts paid in suit:
- w. Other credits (*specify*):

\$ _____
\$ _____
\$ _____

x. Less: Subtotal (credits):

(\$ _____)

y. Less: Amounts paid after suit and before judgment:

(\$ _____)

5. DEFAULT JUDGMENT PRINCIPAL:

\$ _____

I declare under penalty of perjury, under the laws of the State of California, that the foregoing is true and correct.

DATE	TYPE OR PRINT DECLARANT'S NAME	DECLARANT'S SIGNATURE
		☐